

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

DWAYNE INGRAM,

Plaintiff,

COMPLAINT

Index No.

-against-

Jury Trial Demanded

CITY OF NEW YORK, VIRGIL CUMBERBATCH, Individually,
PETER HOEFLINGER, Individually, MICHAEL MUSKIN,
Individually and JOHN and JANE DOE, 1 through 5, Individually
(the names John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.

-----X

Plaintiff DWAYNE INGRAM, by his attorneys, Leventhal Law Group, P.C.,
complaining of the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. §

1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff DWAYNE INGRAM is a twenty-two year old African-American man residing in Brooklyn, New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, VIRGIL CUMBERBATCH, PETER HOEFLINGER, MICHAEL MUSKIN and JOHN and JANE DOE 1 through 5, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said

defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

12. On May 3, 2014, at approximately 7:30 p.m., plaintiff DWAYNE INGRAM was a lawful pedestrian leaving a convenience store located at the corner of Eastern Parkway and Atlantic Avenue in Brooklyn, New York, when he was unlawfully stopped and detained by defendant NYPD officer JOHN DOE 1.

13. Defendant JOHN DOE 1, who was in plain clothes, identified himself as a police officer and told INGRAM that he was conducting an investigation.

14. Shortly thereafter defendants NYPD officers JOHN DOE 2 and JOHN DOE 3 approached INGRAM and JOHN DOE 1, and defendants JOHN DOE 1, 2, and 3 unlawfully handcuffed and searched INGRAM despite lacking probable cause or reasonable suspicion to believe INGRAM had committed any crime or offense. Defendants JOHN DOE 1, 2, and 3 did not recover any weapons or contraband from INGRAM.

15. Defendants JOHN DOE 1, 2, and 3, and upon information and belief, defendants VIRGIL CUMBERBATCH, PETER HOEFLINGER, MICHAEL MUSKIN, and JOHN and JANE DOE 4 and 5, placed INGRAM in a police van where he was unlawfully imprisoned for approximately one hour before he arrived at the NYPD's 73rd precinct stationhouse.

16. The defendant officers unlawfully imprisoned INGRAM until the following day at approximately 11:00 p.m. when claimant was released following his arraignment on baseless charges filed in Kings County Criminal Court under docket no. 2014KN032265; said charges having been filed based on the false allegations of defendants CUMBERBATCH and

HOEFLINGER. Defendants caused said prosecution to be commenced against INGRAM for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to meet "productivity goals" (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and in an effort to avoid discipline for falsely arresting INGRAM.

17. Defendants CUMBERBATCH and HOEFLINGER conspired to create and manufacture false evidence against INGRAM, which CUMBERBATCH and HOEFLINGER conveyed to the Kings County District Attorney's Office causing said evidence to be used against INGRAM in the aforementioned legal proceeding.

18. Specifically, defendants CUMBERBATCH and HOEFLINGER conveyed false allegations to the Kings County District Attorney, to wit: CUMBERBATCH falsely swore in the criminal court complaint filed against INGRAM that he was informed by HOEFLINGER that HOEFLINGER observed INGRAM hand a quantity of marijuana to another individual, and; HOEFLINGER falsely swore in a supporting affidavit filed against INGRAM that he observed INGRAM hand a quantity of marijuana to another individual. These allegations are entirely false.

19. As a result of defendants CUMBERBATCH and HOEFLINGER's false allegations, the Kings County District Attorney filed the following false criminal charges against INGRAM: Criminal Sale of Marijuana in the Fourth Degree (P.L. § 221.40); Criminal Sale of Marijuana in the Fifth Degree (P.L. § 221.35); and Criminal Possession of Marijuana (P.L. § 221.05).

20. The false charges filed against INGRAM compelled INGRAM to return to Kings

County Criminal Court on June 24, 2014 when all of the false charges filed against him were dismissed and sealed.

21. Defendant officers VIRGIL CUMBERBATCH, PETER HOEFLINGER, MICHAEL MUSKIN, and JOHN and JANE DOE 1 through 5 either directly participated in and/or failed to intervene in the false arrest of INGRAM.

22. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees, and due to a custom, policy, and/or practice of: manufacturing false evidence against individuals in a conspiracy to justify false arrests; arresting innocent persons in order to meet productivity goals (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or falsely arresting individuals and engaging in a practice of falsification in an attempt to justify the false arrest.

23. The aforesaid event is not an isolated incident. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as documented in civil rights actions filed in the United States District Courts in the Eastern and Southern Districts of New York as well as in New York State courts, against NYPD police officers in general, and specifically against the defendant officers herein. As a result, defendant CITY OF NEW YORK is aware (from said lawsuits as well as notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK's Civilian Complaint Review Board) that many NYPD officers, including the defendants: manufacture false evidence against individuals in a conspiracy to justify the false

arrests of said individuals; arrest innocent persons in order to meet "productivity goals" (i.e. arrest quotas); arrest individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or falsely arrest individuals and engage in a practice of falsification in an attempt to justify the false arrest.

24. In addition, in another civil rights action filed in this court involving false allegations by NYPD officers, Judge Jack B. Weinstein pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

Colon v. City of New York, et. al., 2009 WL 4263362, *2 (E.D.N.Y.).

25. Moreover, the existence of the aforesaid unconstitutional customs and policies may further be inferred from the admission by former Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that NYPD commanders are permitted to set "productivity goals."

26. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

27. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice,

defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

28. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

29. All of the aforementioned acts deprived plaintiff DWAYNE INGRAM of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

32. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

33. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983
as to defendants CUMBERBATCH, HOEFLINGER, MUSKIN,
and JOHN and JANE DOE 1 through 5)

34. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶30 with the same force and effect as if fully set forth herein.

35. Defendants CUMBERBATCH, HOEFLINGER, MUSKIN, and JOHN and JANE DOE 1 through 5, arrested plaintiff DWAYNE INGRAM without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

36. Defendants caused plaintiff DWAYNE INGRAM to be falsely arrested and unlawfully imprisoned.

37. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Violation of Right to Fair Trial under 42 U.S.C. § 1983
as to defendants CUMBERBATCH and HOEFLINGER)

38. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶37 with the same force and effect as if fully set forth herein.

39. Defendants CUMBERBATCH and HOEFLINGER created false evidence against plaintiff DWAYNE INGRAM.

40. Defendants utilized this false evidence against plaintiff DWAYNE INGRAM in legal proceedings.

41. As a result of defendants' creation and use of false evidence, plaintiff DWAYNE INGRAM suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution.

42. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983
as to defendants CUMBERBATCH, HOEFLINGER, MUSKIN
and JOHN and JANE DOE 1 through 5)

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶420 with the same force and effect as if fully set forth herein.

44. Defendants CUMBERBATCH, HOEFLINGER, MUSKIN, and JOHN and JANE DOE 1 through 5 issued criminal process against plaintiff DWAYNE INGRAM by causing his arrest and prosecution in a criminal court.

45. Defendants caused plaintiff DWAYNE INGRAM to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their false arrest and abuse of authority, and thereby violated plaintiff's right to be free from malicious abuse of process.

46. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983
as to defendants CUMBERBATCH, HOEFLINGER, MUSKIN,
and JOHN and JANE DOE 1 through 5)

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶46 with the same force and effect as if fully set forth herein.

48. Defendants CUMBERBATH, HOEFLINGER, MUSKIN and JOHN and JANE DOE 1 through 5 had an affirmative duty to intervene on behalf of plaintiff DWAYNE INGRAM, whose constitutional rights were being violated in their presence by other officers.

49. The defendants failed to intervene to prevent the unlawful conduct described herein.

50. As a result of the foregoing, plaintiff DWAYNE INGRAM was falsely arrested, unlawfully imprisoned, put in fear of his safety, and deprived of his right to a fair trial.

51. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN FIFTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶51 with the same force and effect as if fully set forth herein.

53. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

54. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff DWAYNE INGRAM's rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

55. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department also included, but were not limited to: manufacturing false evidence against individuals in a conspiracy to justify falsely arresting individuals; arresting innocent persons in order to meet "productivity goals" (i.e. arrest quotas); arresting innocent individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or falsely arresting individuals and engaging in a practice of falsification in an attempt to justify the false arrest.

56. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of plaintiff DWAYNE INGRAM.

57. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff DWAYNE INGRAM as alleged herein.

58. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff DWAYNE INGRAM as alleged herein.

59. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff DWAYNE INGRAM was falsely arrested and deprived of his right to a fair trial. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff DWAYNE INGRAM's constitutional rights.

60. All of the foregoing acts by defendants deprived plaintiff DWAYNE INGRAM of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from the failure to intervene;
- D. To receive his right to fair trial;
- E. To be free from malicious abuse of process.

61. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Supplemental State Law Claims

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶610 with the same force and effect as if fully set forth herein.

63. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

64. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

65. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

66. Plaintiff has complied with all conditions precedent to maintaining the instant action.

67. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR AN SIXTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York
as to defendants CUMBERBATCH, HOEFLINGER, MUSKIN,
JOHN and JANE DOE 1 through 5 and the CITY OF NEW YORK)

68. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ67ò with the same force and effect as if fully set forth herein.

69. Defendants CUMBERBATCH, HOEFLINGER, MUSKIN, and JOHN and JANE DOE 1 through 5 arrested plaintiff DWAYNE INGRAM without probable cause.

70. Plaintiff was falsely arrested and detained against his will for an extended period of time, and subjected to physical restraints.

71. As a result of the aforementioned conduct, plaintiff DWAYNE INGRAM was falsely arrested and unlawfully imprisoned in violation of the laws of the State of New York.

72. As a result of the aforementioned conduct, plaintiff DWAYNE INGRAM suffered emotional and psychological injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

73. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York
as to defendants CUMBERBATCH, HOEFLINGER, MUSKIN,
JOHN and JANE DOE 1 through 5 and the CITY OF NEW YORK)

74. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶73 with the same force and effect as if fully set forth herein.

75. Defendants CUMBERBATCH, HOEFLINGER, MUSKIN, and JOHN and JANE DOE 1 through 5 issued criminal process against plaintiff DWAYNE INGRAM by causing him to be arrested, arraigned and prosecuted in Kings County Criminal Court.

76. Defendants caused plaintiff DWAYNE INGRAM to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for the above mentioned false arrest.

77. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR EIGHTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York
as to defendant CITY OF NEW YORK)

78. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered ¶1 through ¶77 with the same force and effect as if fully set forth herein.

79. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the false arrest of plaintiff DWAYNE INGRAM.

80. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

81. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York
as to defendant CITY OF NEW YORK)

82. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶1 through ¶81 with the same force and effect as if fully set forth herein.

83. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the false arrest of plaintiff DWAYNE INGRAM.

84. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to

compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN TENTH CAUSE OF ACTION
(Negligence under the laws of the State of New York
as to all defendants)

85. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶84 with the same force and effect as if fully set forth herein.

86. Plaintiff's injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

87. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A ELEVENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York
as to defendant CITY OF NEW YORK)

88. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶87 with the same force and effect as if fully set forth herein.

89. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

90. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TWELVETH CAUSE OF ACTION
(Violation of NYS Constitution Article 1 §12 as to all defendants)

91. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered 1 through 90 with the same force and effect as if fully set forth herein.

92. As a result of defendants' conduct, plaintiff DWAYNE INGRAM was deprived of his right to security against unreasonable searches, seizures, and interceptions.

93. As a result of the foregoing, plaintiff DWAYNE INGRAM is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, plaintiff DWAYNE INGRAM demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;

- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
July 30, 2015

LEVENTHAL LAW GROUP, P.C.
Attorneys for Plaintiff DWAYNE INGRAM
45 Main Street, Suite 230
Brooklyn, New York 11201
(718) 556-9600

By: s/_____
JASON LEVENTHAL (JL1067)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

DWAYNE INGRAM,

Plaintiff,

Index No.

-against-

CITY OF NEW YORK, VIRGIL CUMBERBATCH, Individually,
PETER HOEFLINGER, Individually, MICHAEL MUSKIN,
Individually and JOHN and JANE DOE, 1 through 5, Individually
(the names John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants,

-----X

COMPLAINT

LEVENTHAL LAW GROUP, P.C.

Attorneys for the Plaintiff
45 Main Street, Suite 230
Brooklyn, New York 11201
(718) 556-9600